

		14. Counsel information should be removed from the caption page of the proposed order and judgment. 15. The settlement agreement and any amendments thereto should be attached as exhibits to the proposed order and judgment (along with the notice letter in all languages). Paragraph 1 of the proposed order and judgment should be revised accordingly. 16. The proposed order and judgment should state that the judgment will be posted on the settlement administrator's website for at least 180 days. 17. The proposed order and judgment should state that the court orders the parties, their counsel and the settlement administrator to administer the settlement in accordance with the terms of the settlement agreement. 18. The parties should propose a date for the final accounting hearing. The court holds final accounting hearings on Thursdays at 9:00 a.m. Paragraph 9 should be revised to stated that counsel shall submit a final administrator's report at least 9 court days before the hearing addressing the status of the settlement administration, including the actual amounts paid to the aggrieved employees and the other amounts distributed under the settlement, including any uncashed checks. The hearing on plaintiff's motion for approval of PAGA settlement is continued to <u>January 28, 2027 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. See also Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. If required, an amendment to the settlement agreement is directed, rather than "amended settlement agreement," to streamline the court's review. The parties shall also provide redline copies of the revised notice and proposed order. Plaintiff is ordered to provide notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
8	De La Cruz v. Laguna Cookie Company Inc. 2024-01381818	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a \$315,000 class action and PAGA settlement. The court grants the motion as follows: \$2,500 for enhancement award to plaintiff (not to exceed);

		\$94,500 for attorneys' fees (not to exceed); \$20,000 for attorneys' costs (not to exceed); \$7,490 for settlement administration fees (not to exceed); and \$20,000 total PAGA penalties (\$15,000 to LWDA). The final approval hearing is scheduled for <u>February 18, 2027 at 2:00 p.m.</u> in Department CX105. The motion for final approval shall be filed at least 16 court days before the hearing. See Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
9	Hernandez v. Islands Restaurants, L.P. 2023-01320258	Off calendar.
10	Martinez v. Auto International Insurance Agency Inc. 2022-01297545	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of an \$880,000 class action and PAGA settlement. The court has the following questions and comments: <u>As to the settlement:</u> 1. In the September 25, 2025 order (ROA 119), the court stated that the settlement agreement is undated. This has not been addressed. 2. In the September 25, 2025 order, the court stated that the parties should provide plaintiff's anticipated total compensation to be received (including for any individual claims and excluding any enhancement payment). Plaintiff has provided her anticipated individual class and PAGA payments, but has not stated whether she anticipates receiving any compensation for any individual claims. Does plaintiff anticipate receiving any compensation for any individual claims? 3. In the September 25, 2025 order, the court stated that the "Released Parties" provision in paragraph 1.41 of the settlement agreement was overbroad. The "Released Parties" provision in the amendment to the settlement agreement remains overbroad. The following unidentified, ambiguous and/or unrelated third parties should be removed: "consultants, partners," "joint venturers, agents," and "accountants, insurers, reinsurers, and/or legal representatives." 4. In its September 25, 2025 order, the court stated that while it will not determine the amount of attorneys' fees to be